

UNITED STATES INTERNATIONAL TRADE COMMISSION
Washington, D.C.

In the Matter of

CERTAIN WEARABLE DEVICES

Inv. No. 337-TA-1478

NOTICE OF INSTITUTION OF INVESTIGATION

Institution of investigation pursuant to 19 U.S.C. 1337

AGENCY: U.S. International Trade Commission

ACTION: Notice

SUMMARY: Notice is hereby given that a complaint was filed with the U.S. International Trade Commission on December 15, 2025, under section 337 of the Tariff Act of 1930, as amended, on behalf of Samsung Electronics Co., Ltd. of Korea and Samsung Electronics America, Inc. of Englewood, New Jersey. A supplement to the complaint was filed on December 31, 2025, and an amended complaint was filed on January 5, 2026. The complaint, as supplemented and amended, alleges violations of section 337 based upon the importation into the United States, the sale for importation, and the sale within the United States after importation of certain wearable devices by reason of the infringement of certain claims of U.S. Patent No. 10,642,359 (“the ’359 patent”); U.S. Patent No. 10,945,677 (“the ’677 patent”); U.S. Patent No. 10,231,675 (“the ’675 patent”); and U.S. Patent No. 10,978,789 (“the ’789 patent”). The complaint, as supplemented and amended, further alleges that an industry in the United States exists as required by the applicable Federal Statute.

The complainants request that the Commission institute an investigation and, after the investigation, issue a limited exclusion order and cease and desist orders.

ADDRESSES: The complaint, except for any confidential information contained therein, may be viewed on the Commission’s electronic docket (EDIS) at <https://edis.usitc.gov>. For help accessing EDIS, please email EDIS3Help@usitc.gov. Hearing impaired individuals are advised that information on this matter can be obtained by contacting the Commission’s TDD terminal on (202) 205-1810. Persons with mobility impairments who will need special assistance in gaining access to the Commission should contact the Office of the Secretary at (202) 205-2000. General information concerning the Commission may also be obtained by accessing its internet server at <https://www.usitc.gov>.

FOR FURTHER INFORMATION CONTACT: Susan Orndoff, The Office of the Secretary, Docket Services Division, U.S. International Trade Commission, telephone (202) 205-1802.

SUPPLEMENTARY INFORMATION:

AUTHORITY: The authority for institution of this investigation is contained in section 337 of the Tariff Act of 1930, as amended, 19 U.S.C. 1337, and in section 210.10 of the Commission's Rules of Practice and Procedure, 19 C.F.R. 210.10 (2025).

SCOPE OF INVESTIGATION: Having considered the complaint, the U.S. International Trade Commission, on January 13, 2026, ORDERED THAT –

(1) Pursuant to subsection (b) of section 337 of the Tariff Act of 1930, as amended, an investigation be instituted to determine whether there is a violation of subsection (a)(1)(B) of section 337 in the importation into the United States, the sale for importation, or the sale within the United States after importation of certain products identified in paragraph (2) by reason of infringement of one or more of claims 1, 2, 4, 7, 8, 10, 14, 15, and 20 of the '359 patent; claims 1-7, 9-14, and 16-20 of the '677 patent; claims 13-20 of the '675 patent; and claims 7-10 of the '789 patent, and whether an industry in the United States exists as required by subsection (a)(2) of section 337;

(2) Pursuant to section 210.10(b)(1) of the Commission's Rules of Practice and Procedure, 19 C.F.R. 210.10(b)(1), the plain language description of the accused products or category of accused products, which defines the scope of the investigation, is “wearable devices, specifically wearable biosignal interfaces and an operation method thereof as well as wearable electronic devices for detecting biometric information”;

(3) For the purpose of the investigation so instituted, the following are hereby named as parties upon which this notice of investigation shall be served:

(a) The complainants are:

Samsung Electronics Co., Ltd.
129 Samsung ro (Maetan-dong)
Yeongtong-gu Suwon-si
Gyeonggi-do 16677
Republic of Korea

Samsung Electronics America, Inc.
700 Sylvan Avenue
Englewood Cliffs, NJ 07632

(b) The respondents are the following entities alleged to be in violation of section 337, and are the parties upon which the complaint is to be served:

Ouraring, Inc.
222 Kearny Street
San Francisco, CA 94108

Ōura Health Oy
Elektroniikkatie 10,
90590 Oulu, Finland

(4) For the investigation so instituted, the Chief Administrative Law Judge, U.S. International Trade Commission, shall designate the presiding Administrative Law Judge.

The Office of Unfair Import Investigations will not participate as a party in this investigation.

Responses to the complaint and the notice of investigation must be submitted by the named respondents in accordance with section 210.13 of the Commission's Rules of Practice and Procedure, 19 C.F.R. 210.13. Pursuant to 19 C.F.R. 201.16(e) and 210.13(a), such responses will be considered by the Commission if received not later than 20 days after the date of service by the Commission of the complaint and the notice of investigation. Extensions of time for submitting responses to the complaint and the notice of investigation will not be granted unless good cause therefor is shown.

Failure of a respondent to file a timely response to each allegation in the complaint and in this notice may be deemed to constitute a waiver of the right to appear and contest the allegations of the complaint and this notice, and to authorize the administrative law judge and the Commission, without further notice to the respondent, to find the facts to be as alleged in the complaint and this notice and to enter an initial determination and a final determination containing such findings, and may result in the issuance of an exclusion order or a cease and desist order or both directed against the respondent.

By order of the Commission.

A handwritten signature in black ink, appearing to read 'Lisa Barton', with a stylized, cursive script.

Lisa Barton
Secretary to the Commission

Issued: January 14, 2026

PUBLIC CERTIFICATE OF SERVICE

I, Lisa R. Barton, hereby certify that the attached **INSTITUTION OF INVESTIGATION** has been served via EDIS upon the following parties as indicated, on **January 14, 2026**.



Lisa R. Barton, Secretary
U.S. International Trade Commission
500 E Street, SW, Room 112
Washington, DC 20436

Complainants:

Samsung Electronics Co., Ltd.
129 Samsung ro (Maetan-dong)
Yeongtong-gu Suwon-si
Gyeonggi-do 16677 Korea

- ☐ Via Hand Delivery
- ☐ Via Express Delivery
- ☐ Via First Class Mail
- ☒ Other: Email Notification
of Availability for Download

Samsung Electronics America, Inc.
700 Sylvan Avenue
Englewood Cliffs, NJ 07632

- ☐ Via Hand Delivery
- ☐ Via Express Delivery
- ☐ Via First Class Mail
- ☒ Other: Email Notification
of Availability for Download

On Behalf of Complainants:

D. Sean Trainor, Esq.
O'MELVENY & MYERS LLP
1625 Eye Street, NW
Washington, D.C. 20006
Email: dstrainor@omm.com

- ☐ Via Hand Delivery
- ☐ Via Express Delivery
- ☐ Via First Class Mail
- ☒ Other: Email Notification
of Availability for Download

Respondents:

Ouraring, Inc.
222 Kearny Street
San Francisco, California 94108

- ☐ Via Hand Delivery
- ☒ Via Express Delivery
- ☐ Via First Class Mail
- ☐ Other: Service to Be

Certificate of Service – Page 2

Ōura Health Oy
Elektroniikkatie 10
90590 Oulu, Finland

Embassy:

Embassy of Finland
3301 Massachusetts Avenue NW
Washington, DC 20008

Government:

Lynda Marshall
International Section, Antitrust Division
U.S. Department of Justice
450 5th Street NW, Room 11000
Washington, DC 20530

Dax Terrill, Chief
Exclusion Order Enforcement Branch
U.S. Customs and Border Protection
Regulations and Rulings
90 K Street NE – 10th Floor
Washington, DC 20229

Anupama Sawkar
Acting Deputy Director, Office of Policy Planning
Special Counsel for Intellectual Property
Federal Trade Commission
600 Pennsylvania Avenue
Washington, DC 20580

Summer E. Young, PH.D., J.D.
HHS Office of the General Counsel, NIH Branch
National Institutes of Health
31 Center Drive

Completed by Complainant

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☐ Via First Class Mail
☐ Other: Service to Be Completed by Complainant

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Certificate of Service – Page 3

Bldg. 31, Room 2B-50
Bethesda, MD 20892

of Availability for Download



UNITED STATES INTERNATIONAL TRADE COMMISSION

WASHINGTON, DC 20436

January 14, 2026

Samsung Electronics Co., Ltd.
129 Samsung ro (Maetan-dong)
Yeongtong-gu Suwon-si
Gyeonggi-do 16677 Korea

Re: Certain Wearable Devices; Inv. No. 337-TA-1478

Dear Sir/Madam:

This letter is to advise you that the U.S. International Trade Commission has instituted an investigation pursuant to section 337 of the Tariff Act of 1930 (19 U.S.C. 1337). A copy of the Commission's notice of investigation is enclosed. Also enclosed is the Section 337 Mediation Program brochure. After reviewing the brochure, please sign and return the enclosed certification of receipt.

Sincerely,

A handwritten signature in black ink, appearing to read "Lisa R. Barton".

Lisa R. Barton
Secretary

Enclosures:

1. Notice of Investigation
2. Publication Regarding the Section 337 Mediation Program
3. Certification of Receipt of Mediation Materials



UNITED STATES INTERNATIONAL TRADE COMMISSION

WASHINGTON, DC 20436

January 14, 2026

Samsung Electronics America, Inc.

700 Sylvan Avenue

Englewood Cliffs, NJ 07632

Re: Certain Wearable Devices; Inv. No. 337-TA-1478

Dear Sir/Madam:

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UNITED STATES INTERNATIONAL TRADE COMMISSION

WASHINGTON, DC 20436

January 14, 2026

D. Sean Trainor, Esq.
O'MELVENY & MYERS LLP
1625 Eye Street, NW
Washington, D.C. 20006

Re: Certain Wearable Devices; Inv. No. 337-TA-1478

Dear Sir/Madam:

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Lisa R. Barton
Secretary

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3. Certification of Receipt of Mediation Materials



UNITED STATES INTERNATIONAL TRADE COMMISSION

WASHINGTON, DC 20436

January 14, 2026

Ouraring, Inc.
222 Kearny Street
San Francisco, California 94108

Re: Certain Wearable Devices, Inv. No. 337-TA-1478

Dear Sir/Madam:

This letter is to advise you that the United States International Trade Commission has instituted an investigation pursuant to Section 337 of the Tariff Act of 1930 (19 U.S.C. 1337). **Ouraring, Inc.** is a named respondent in this investigation.

We are hereby serving you with a copy of the Complaint and the Notice of Investigation issued in this matter. Enclosed is a copy of the Code of Federal Regulations. Also enclosed is a the Section 337 Mediation Program brochure. After reviewing this brochure, please sign and return the enclosed certification of receipt.

Please note that the Notice requires a response to the allegations in the Complaint and the response must be received not later than twenty (20) days after the date of service of the Complaint. Failure to file a response may result in inferences being drawn against your interests.

Sincerely,

A handwritten signature in black ink, appearing to read "Lisa R. Barton".

Lisa R. Barton
Secretary

Enclosures:

1. Complaint
2. Notice of Investigation
3. Code of Federal Regulation
4. Publication Regarding the Section 337 Mediation Program
5. Certification of Receipt of Mediation Materials



UNITED STATES INTERNATIONAL TRADE COMMISSION

WASHINGTON, DC 20436

January 14, 2026

Ōura Health Oy
Elektroniikkatie 10
90590 Oulu, Finland

Re: Certain Wearable Devices, Inv. No. 337-TA-1478

Dear Sir/Madam:

This letter is to advise you that the United States International Trade Commission has instituted an investigation pursuant to Section 337 of the Tariff Act of 1930 (19 U.S.C. 1337). **Ōura Health Oy** is a named respondent in this investigation.

We are hereby serving you with a copy of the Complaint and the Notice of Investigation issued in this matter. Enclosed is a copy of the Code of Federal Regulations. Also enclosed is a the Section 337 Mediation Program brochure. After reviewing this brochure, please sign and return the enclosed certification of receipt.

Please note that the Notice requires a response to the allegations in the Complaint and the response must be received not later than twenty (20) days after the date of service of the Complaint. Failure to file a response may result in inferences being drawn against your interests.

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Lisa R. Barton
Secretary

Enclosures:

1. Complaint
2. Notice of Investigation
3. Code of Federal Regulation
4. Publication Regarding the Section 337 Mediation Program
5. Certification of Receipt of Mediation Materials



UNITED STATES INTERNATIONAL TRADE COMMISSION

WASHINGTON, DC 20436

January 14, 2026

Embassy of Finland
3301 Massachusetts Avenue NW
Washington, DC 20008

Re: Certain Wearable Devices, Inv. No. 337-TA-1478

Dear Sir/Madam:

This letter is to advise you that the United States International Trade Commission has instituted an investigation pursuant to Section 337 of the Tariff Act of 1930 (19 U.S.C. 1337). One or more of the parties named in the investigation is located in **Finland**.

Pursuant to Commission Rule 210.11(a) (3), we are hereby serving you with a copy of the Complaint filed in this investigation together with a copy of the Commission's Notice of Investigation.

Sincerely,

A handwritten signature in black ink, appearing to read "Lisa R. Barton".

Lisa R. Barton
Secretary

Enclosures:

1. Complaint
2. Notice of Investigation



UNITED STATES INTERNATIONAL TRADE COMMISSION

WASHINGTON, DC 20436

January 14, 2026

Lynda Marshall
International Section
Antitrust Division
U.S. Dept of Justice
450 5th Street NW, Room 11000
Washington, DC 20530

Re: Certain Wearable Devices, Inv. No. 337-TA-1478

Dear Lynda Marshall:

This letter is to advise you that the United States International Trade Commission has instituted an investigation pursuant to Section 337 of the Tariff Act of 1930 (19 U.S.C. 1337). A copy of the Notice of Investigation is enclosed. Non-confidential copies of the Complaint and any supplements filed in the investigation will be provided upon request. Requests should be directed to Docket Services at (202) 205-1802.

If you have any questions concerning this investigation, please contact the Commission Investigative Attorney whose name and telephone number appear in the enclosed Notice.

Sincerely,

A handwritten signature in black ink, appearing to read "Lisa R. Barton".

Lisa R. Barton
Secretary

Enclosure:

1. Notice of Investigation



UNITED STATES INTERNATIONAL TRADE COMMISSION

WASHINGTON, DC 20436

January 14, 2026

Dax Terrill, Chief
Exclusion Order Enforcement Branch
U.S. Customs and Border Protection
Regulations and Rulings
90 K Street NE, 10th Floor
Washington, DC 20229-1177

Re: Certain Wearable Devices, Inv. No. 337-TA-1478

Dear Dax Terrill:

This letter is to advise you that the United States International Trade Commission has instituted an investigation pursuant to Section 337 of the Tariff Act of 1930 (19 U.S.C. 1337). A copy of the Notice of Investigation is enclosed. Non-confidential copies of the Complaint and any supplements filed in the investigation will be provided upon request. Requests should be directed to Docket Services at (202) 205-1802.

If you have any questions concerning this investigation, please contact the Commission Investigative Attorney whose name and telephone number appear in the enclosed Notice.

Sincerely,

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Lisa R. Barton
Secretary

Enclosure:

1. Notice of Investigation



UNITED STATES INTERNATIONAL TRADE COMMISSION

WASHINGTON, DC 20436

January 14, 2026

Anupama Sawkar
Acting Deputy Director, Office of Policy Planning
Special Counsel for Intellectual Property
Federal Trade Commission
600 Pennsylvania Avenue
Washington, DC 20580

Re: Certain Wearable Devices, Inv. No. 337-TA-1478

Dear Anupama Sawkar:

This letter is to advise you that the United States International Trade Commission has instituted an investigation pursuant to Section 337 of the Tariff Act of 1930 (19 U.S.C. 1337). A copy of the Notice of Investigation is enclosed. Non-confidential copies of the Complaint and any supplements filed in the investigation will be provided upon request. Requests should be directed to Docket Services at (202) 205-1802.

If you have any questions concerning this investigation, please contact the Commission Investigative Attorney whose name and telephone number appear in the enclosed Notice.

Sincerely,

A handwritten signature in black ink, appearing to read "Lisa R. Barton".

Lisa R. Barton
Secretary

Enclosure:

1. Notice of Investigation



UNITED STATES INTERNATIONAL TRADE COMMISSION

WASHINGTON, DC 20436

January 14, 2026

Summer E. Young, Ph.D., J.D.
HHS Office of the General Counsel, NIH Branch
National Institutes of Health
31 Center Drive
Building 31, Room 2B-50
Bethesda, MD 20892

Re: Certain Wearable Devices, Inv. No. 337-TA-1478

Dear Summer Young:

This letter is to advise you that the United States International Trade Commission has instituted an investigation pursuant to Section 337 of the Tariff Act of 1930 (19 U.S.C. 1337). A copy of the Notice of Investigation is enclosed. Non-confidential copies of the Complaint and any supplements filed in the investigation will be provided upon request. Requests should be directed to Docket Services at (202) 205-1802.

If you have any questions concerning this investigation, please contact the Commission Investigative Attorney whose name and telephone number appear in the enclosed Notice.

Sincerely,

A handwritten signature in black ink, appearing to read "Lisa R. Barton", is written over a circular embossed seal.

Lisa R. Barton
Secretary

Enclosure:

1. Notice of Investigation